

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3850

By: Roberts

AS INTRODUCED

An Act relating to prisons and reformatories;
amending 57 O.S. 2021, Sections 510.7 and 510.8,
which relate to the Oklahoma Inmate Literacy Act;
directing the Department of Corrections to fully fund
program for inmates to obtain high school equivalency
diplomas; deleting references to reading proficiency
program; removing financial hardship exception; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 510.7, is
amended to read as follows:

Section 510.7. A. The Department of Corrections shall
establish and fully fund a program to ensure that inmates ~~have an~~
~~opportunity to achieve at least a high school equivalency~~
~~development level of proficiency in reading, writing and computation~~
~~skills, to the extent resources are available, prior to release,~~
receive a high school equivalency diploma. The provisions of this
subsection shall apply to all inmates in the custody of the
Department of Corrections, except those inmates identified and

1 documented, through the testing requirements provided in subsection
2 B of this section, to be incapable of benefiting from education
3 programs, and except those inmates who have already ~~achieved~~
4 obtained a ~~general educational development level of proficiency in~~
5 ~~reading, writing and computation skills~~ high school equivalency
6 diploma.

7 B. The Department of Corrections, in fulfilling its duty to
8 assess the educational and training needs of an inmate as part of
9 the assessment and reception process required by Section 530.1 of
10 this title, shall administer an examination to determine the
11 educational proficiency level of the inmate, the existence of any
12 learning disabilities, and any other factors relevant to determining
13 if the inmate is capable of ~~achieving the educational proficiency~~
14 ~~level established in subsection A of this section and if so, to~~
15 ~~determine the type of education programs necessary to bring the~~
16 ~~inmate to the~~ obtaining a high school equivalency development level
17 of proficiency diploma.

18 SECTION 2. AMENDATORY 57 O.S. 2021, Section 510.8, is
19 amended to read as follows:

20 Section 510.8. A. The Department of Corrections shall
21 implement procedures to ensure that priority for placement of
22 eligible inmates in education programs be given to inmates lacking
23 basic literacy skills and to inmates closest to their projected
24 release dates.

1 B. Any incarcerated inmate that refuses to participate in
2 recommended education programs shall be ineligible for earned
3 credits as provided in Section 138.1 of this title and shall
4 jeopardize the eligibility of the inmate for parole or participation
5 in the Preparole Conditional Supervision Program.

6 C. Any eligible inmate who has not ~~achieved the educational~~
7 ~~proficiency level~~ obtained a high school equivalency diploma
8 established in Section 510.7 of this title, prior to the date of
9 eligibility for parole or preparole conditional supervision, shall
10 be required by the Pardon and Parole Board to participate in
11 education programs approved by the Board to ~~achieve the proficiency~~
12 ~~level or, at the discretion of the Board, to~~ obtain a high school
13 equivalency diploma as a condition of parole or preparole
14 conditional supervision. If education programs are not available in
15 the community where the inmate resides, ~~or if the Board finds that~~
16 ~~the educational requirements would be a financial hardship on the~~
17 ~~inmate or that~~ if the inmate is not physically able to participate,
18 the Board may waive the educational requirement set forth in this
19 section.

20 SECTION 3. This act shall become effective November 1, 2026.
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